Tamil Nadu Ministers and Presiding Officers of Legislature (Furnishing of Private Houses and Provision of Amenities) Rules, 1977

TAMILNADU
India

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Rule TAMIL-NADU-MINISTERS-AND-PRESIDING-OFFICERS-OF-LEGISLATU of 1977

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Tamil Nadu Ministers and Presiding Officers of Legislature (Furnishing of Private Houses and Provision of Amenities) Rules, 1977Last Updated 5th June, 2019In exercise of the powers conferred by sub-section (1) of section 14 read with sub-section (2) of section 6-B of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the Governor of Tamil Nadu hereby makes the following rules: -

1. Short title, application and commencement.

(1)These rules may be called the Tamil Nadu Ministers and Presiding Officers of Legislature (Furnishing of Private Houses and Provision of Amenities) Rules, 1977.(2)[They shall apply to the furnishing, maintenance and the provision of amenities at the house occupied and owned by [any Minister or the Speaker and is paid a rent of a sum not exceeding] [Vide G.O. Ms.No. 1568, Public (Establishment-I), dated the 12th August 1981.] [twenty thousand rupees] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from 1st November 1986).] per mensem as may be fixed by the Public Works Department of the State Government in lieu of house rent paid under 3section 3 or 4 of the Act.](3)[They shall also apply to the furnishing, maintenance and the provision of amenities at the house occupied and owned by [the Deputy Speaker, the Parliamentary Secretary] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from 1st November 1986).], the Leader of

Opposition and Chief Government Whip and paid a rent of a sum not exceeding [twenty thousand rupees] [Vide G O. Ms.No. 1178, Public (Establishment-I and Legislature) dated the 1st July 2007 (with effect from dated the 1st July 2007).] per mensem as may be fixed by the Public Works Department of the State Government in lieu of the house rent paid under sections 2, 6 or 6-A of the Act.](4)They shall be deemed to have come into force on the 1st November 1967.

2. [definitions. [Vide G.O. Ms.No. 4, Public (Legislature Wing), dated the 2nd January 1989 (with effect from 2nd January 1989).]

- I. In these rules,-(a)[Omitted].(b)"Act" means the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951);(c)"Chief Government Whip" means the Chief Government Whip in the Legislative Assembly;(d)[Omitted](e)"Deputy Speaker" means the Deputy Speaker of the Legislative Assembly;(ee)["electrical appliances"] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).] include fan, refrigerator, hot water boiler, T.V. and motor;(f)"House" means a house mentioned in sub-rule (2) of rule 1;(g)"Leader of the Opposition" means the Leader of the Opposition in the Legislative Assembly;(h)"Minister" includes the Chief Minister;(i)"Parliamentary Secretary" means the Parliamentary Secretary to the Minister;(j)"Speaker" means the Speaker of the Legislative Assembly;(k)"Term of office" means the period during which a person holds office as such and it shall continue till the spell of five years after the general election expires, unless he ceases to hold that post earlier.]

3. Structural alterations and additions to houses.

(1)Such structural alterations and additions as are required to be made in any house for the accommodation and convenience of sentries, visitors and personal staff, or as are necessitated by the posting of sentries and personal staff, shall subject to the approval of the State Government, be carried out at the cost of the State Government.(2)[The total cost of such structural alterations and additions made to the house during the tenure of office of [the Minister or the Speaker] [Vide G.O. Ms.No. 1568, Public (Establishment-I), dated the 12th August 1981.], as the case may be, shall not exceed thirty thousand rupees and in the case of the Deputy Speaker, [the Leader] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).] of opposition, the Parliamentary Secretary or the Chief Government Whip, as the case may be, shall not exceed twenty thousand rupees.](3)[When the Minister, the Speaker, the Deputy Speaker, the Parliamentary Secretary, the Leader of Opposition or the Chief Government Whip, as the case may be, lays down office, such of those structural alterations and additions carried out at the cost of the State Government as cart be dismantled, shall be removed and taken back by the State Government or [depreciated] [Vide G.O. Ms.No. 1568, Public (Establishment-I), dated the 12th August 1981.] value thereof as may be fixed by the Public Works Department of the State Government from time to time, shall be recovered from the Minister, the Speaker, the Deputy Speaker, [the Parliamentary] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).] Secretary, the Leader of Opposition or the Chief Government Whip, if he desires to retain them. The structural alterations and additions as cannot be dismantled shall be left as they are.]

4. Electrical fittings.

(1)Any extension of electrical amenities, including increase in number of fans, required to bring the house to proper standards, shall, subject to the approval of the State Government, be provided at the cost of the State Government.(2)[The total cost of any extension of electrical amenities provided to the house during the tenure of office of [the Minister] [Vide G.O. Ms.No. 1568, Public (Establishment-I), dated the 12th August 1981.] or the Speaker, as the case may be, shall not exceed three thousand rupees and in the case of the Deputy Speaker, the Leader of Opposition, the Parliamentary Secretary or the Chief Government Whip, as the case may be, shall not exceed two thousand rupees.]

5. [Furniture and fittings. [Vide G.O. Ms.No. 1568, Public (Establishment-I), dated the 12th August 1981.]

- Furniture and fittings costing up to monetary limit of thirty thousand rupees shall be provided to the house during the tenure of office of the Minister or the Speaker, as the case may be, and twenty thousand rupees during the tenure of office of the Deputy Speaker, the Parliamentary Secretary, the Leader of Opposition or the Chief Government Whip, as the case may be, and maintained at the cost of the State Government. The cost of the annual maintenance of furniture and fittings shall be fixed at eight percent of the capital cost of the furniture supplied and fittings provided. Such amenities shall be, removed or taken back by the State Government when the Minister, the Speaker, the Deputy Speaker, the Parliamentary Secretary, the Leader of the Opposition or the Chief Government Whip, as the case may be, lays down office or the value thereof shall be recovered from the Minister, the Speaker, the Deputy Speaker, the Parliamentary Secretary, the Leader of the Opposition or the Chief Government Whip desires to retain them.]Explanation. - The monetary limit specified in this rule shall be with reference to the actual capital cost of the furniture and fittings at the time of purchase and no depreciation shall be allowed in working out the monetary limit on any date. The rules of the Public Works Department governing the life of steel and wooden furniture shall also apply to the furniture provided under this rule.(2)[The life of the furniture and furnishings shall, from the date of its purchase, be fixed as follows: -

(i)	Wooden furniture	10 years
(ii)	Steel furniture	15 years
(iii)	Furnishings -	
	(a) Pillow Covers and Sofa Covers	2 years
	(b) Bed sheets and Bed spreads	3 years
	(c) Curtains, Carpets, Doormats, Woollen and Linen furnishingand Mosquito nets	3-1/2 years]

6. Refrigerator and hot water boilers.

- One Refrigerator and two electric hot water boilers may be provided to the house during the term of office of the Minister, the Speaker, the Deputy Speaker, Parliamentary Secretary, the Leader of Opposition or the Chief Government Whip, as the case may be, and maintained at the cost of the

State Government be provided to the house of the Minister or the Speaker, as the case may be, at the cost of the Government:Provided that if the house has a separate guest wing, an additional electric hot water boiler may be provided to the house of the Minister or the Speaker, as the case may be, at the cost of the Government.

6A. [Television. [Vide G.O. Ms.No. 1601, Public (Legislature Wing), dated the 22nd September 1988 (with effect from the 14th October 1986).]

(1)Colour Television Set shall be provided to the house during the [term of office of the Minister, the Speaker, the Deputy Speaker, the Leader of the Opposition, as the case may be, at the cost of the State Government, if he does not own at his cost.] [Vide G.O. Ms.No. 169, Public (Establishment-I), dated the 8th February 1984.](2)Black and White Television set shall be provided in the house during the term of office of the Parliamentary Secretary or the Chief Government Whip, as the case may be, at the cost of the State Government, if he does not own one at his cost.]

7. Telephone.

- Telephone facilities shall be provided to the house during the term of office of the Minister, the Speaker, the Deputy Speaker, the Parliamentary Secretary, the Leader of Opposition or the Chief Government Whip, as the case may be at the cost of the State Government. Telephone charges shall also be borne by the State Government.

8. [Overall monetary limit. [Vide G.O. Ms.No. 4, Public (Legislature Wing), dated the 2nd January 1989 (with effect from the 2nd January 1989).]

- Notwithstanding anything contained in rules 3, 4, and 5 the State Government may authorise the incurring of expenditure in excess of the monetary limits specified in any of the rules on any of the items mentioned therein:Provided that the total expenditure incurred on the structural alterations and additions, extensions or electrical fittings, furniture and fittings, refrigerator, electric, hot water boilers during the tenure of office of the Minister or the Speaker, as the case may be, shall not in any case exceed sixty thousand rupees and in the case of the Deputy Speaker, the Parliamentary Secretary, the Leader of Opposition or the Chief Government Whip as the case may be, shall not in any case exceed forty thousand rupees.]

9. Removal of amenities.

(1)When the Minister, the Speaker, the Deputy Speaker, the Leader of Opposition, the Parliamentary Secretary or the Chief Government Whip, as the case may be, to whom a house rent is paid under sections 23, 4, 6 or 6-A of the Act, cease to occupy any house in respect of which any expenditure has been incurred under rules 24, 5, 6, 6-A or 7 or when he lays down office, such of those amenities as are provided at the cost of the State Government, shall be removed and taken back by the State Government. However, if for any reason, they are not able to return the articles, the Minister, the Speaker, the Deputy Speaker, the Parliamentary Secretary, the Leader of

Opposition or the Chief Government Whip, as the case may be, permitted to retain them after the payment of depreciated value of the articles.(2)[The depreciated value of the article referred to in sub-rule (1) shall be determined with reference to the life time of the article, from the date of its purchase, as detailed in the Table below:-

	Serial number and name of the article	Life time	Depreciation in percentage per annum
	(1)	(2)	(3)
1.	Furniture -		
	(i) Wooden furniture	Ten years	10
	(ii) Steel or Aluminium furniture	Fifteen years	6.67
2.	Electrical Appliance -		
	(i) Fan, Refrigerator, Hot water boilers,Television and Motor	Ten years	10
	(ii) Other electrical appliances	Seven years	14.25
3.	Furnishings -		
	(i) Sofa pillow and Mattress covers	Two years	50
	(ii) Bed sheet and Bed spreads	Three years	33.3
	(iii) Curtains, Carpets, Mats, Mattress,pillows, Woollen and Linen furnishing, Mosquito nets and otherfurnishings	Three years and six months	28.5]

10. Water charges.

- The water charges payable to the Municipal Corporation of Chennai and the pumping charges shall be borne by the State Government.

11. Electricity consumption charges.

- The electricity consumption charges shall be borne by the State Government.

12. Up-keep of house.

- The house shall be provided with one sweeper, one mazdoor and one gardener at the cost of the State Government and appointment to the these posts shall be made by [Minister or the Speaker,] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).] as the case may be, at his own accord:Provided that in the case of the house provided to the Deputy Speaker, [the Parliamentary Secretary,] [Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).] the Leader of Opposition or the Chief Government Whip, one sweeper and one gardener shall be provided at the cost of the State Government and appointment to these posts shall be made at their own accord.

12A. Expenditure towards repair.

- The total expenditure per annum towards repair charges including white washing shall not exceed a month's rent fixed to the house.

13.

An inventory of furniture, fittings and electrical appliances provided at the house of the Minister, the Speaker, the Deputy Speaker, [the Parliamentary Secretary,] [Vide G.O.Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986.] the Leader of the Opposition or the Chief Government Whip, as the case may be, shall be prepared and verified periodically by the Chief Engineer (Buildings), Public Works Department, in accordance with the instructions issued by the State Government.

14. Receipt of acknowledgement.

- An acknowledgement shall be obtained from the Senior Personal Assistant to the Minister or the Speaker as the case may be and the Personal Assistant to the Deputy Speaker, the Leader of the Opposition, the Parliamentary Secretary or the Chief Government Whip, as the case may be, for the furniture, fittings and electrical appliances provided at the house by the Chief Engineer (Buildings), Public Works Department. The Senior Personal Assistant or the Personal Assistant, as the case may be, shall be responsible for the up-keep of all the furniture, fittings and electrical appliances which are provided at the house.[Vide G.O. Ms.No. 1266, Public (Establishment-I and Legislature), dated the 26th July 1990 (with effect from the 1st November 1986).]